

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY
IN THE SUPREME COURT FOR THE STATE OF MISSISSIPPI
2021 OCT 11 P 4:00

CHANCERY CLERK MATTHEW REARDON
PLAINTIFF
BY DC 

v.

THE HONORABLE JUDGE ROBERT WHITWELL
DEFENDANT

REGARDING THE ORDER ENTERED SEPTEMBER 30, 2021
IN LAFAYETTE COUNTY CHANCERY COURT
UNDER CAUSE NO CV2016-422W

EMERGENCY NOTICE OF APPEAL
AND
PETITION FOR WRIT OF MANDAMUS

MATTHEW OLIVER REARDON
Plaintiff (Pro-Se)
117 County Road 401
Oxford, MS 38655
Telephone: (662) 205-6711
Email: matt@mattreardon.com

COMES NOW your Petitioner, MATTHEW OLIVER REARDON, and gives notice of his intention to appeal the trial court order entered on September 30, 2021 in regards to the Petitioner's "*Motion for Dismissal or in the Alternative for Recusal*" submitted September 28, 2021. With his notice of appeal filed, *Petitioner would also petition this honorable court to issue a writ of mandamus to the trial judge* in this matter, which petitioner feels is most certainly

warranted and justifiable due to the well documented and established history which petitioner states is fully supported in by sworn affidavits, motions, reports, well-settled law, the Mississippi Bill of Rights, and the Federal Constitution. Petitioner states that complying further with the order of the Defendant Judge in this matter would directly violate his fourth and fifth constitutional rights aggrieving irreparable injuries upon Petitioner. The fact that the Defendant Judge gave such an intrusive, unjustifiable, and outrageous order making him choose between complying with the order and compromising on his fourth and fifth amendment rights in order to see his child for regular scheduled visitation, or surrender all visitation rights if he doesn't comply has now aggrieved 8th amendment rights violations on petitioner by way of inflicting unjust, undue punishment on petitioner for him holding steadfast in not allowing any further deprivation of his rights, which petitioner states have been intentionally deprived of him over and over for the four years prior. Based on the facts and history regarding the parties in this cause, Petitioner alleges that nothing short of corrupt involvement have tainted a multitude of legal matters from particular occurrences and actions that have stemmed from the Chancery Court of Lafayette County and in particular under this defendant Judge. The facts brought forth in this matter include the following:

- 1) Proceedings involving this particular court and this particular judge were initiated in August of 2016 when both parties filed a *JOINT COMPLAINT TO ESTABLISH PATERNITY, CHILD CUSTODY, AND CHILD SUPPORT*. Crowder was represented by Rhea Tannehill and Reardon was represented by Andy Arant for that proceeding.
- 2) That on that same day and under the same representation, both parties agreed and entered into the original *CHILD CUSTODY, VISITATION AND CHILD SUPPORT AGREEMENT*

- 3) That on May 1st, 2017 Crowder, through representation of Attorney Mona Pittman, filed a *PETITION FOR EMERGENCY, TEMPORARY RELIEF WITHOUT NOTICE* and a *PETITION FOR CITATION OF CONTEMPT*. The Petition For Emergency, Temporary Relief Without Notice stated erroneous, outlandish claims which were never supported by any attached evidence, and never given under true affidavit by the affiant (Crowder) and further never witnessed by a notary public. Nonetheless the Defendant Judge instantly granted this petition mandating forced separation between Petitioner (Reardon) and his minor child further mandating that he not be located within 500 yards of the minor child despite the fact that no supportive evidence was ever demonstrated and the petition was invalid as it was not supported by true signed and notarized affidavit.
- 4) Petitioner (Reardon) coincidentally was arrested for disorderly conduct for his standing in solitude holding the State Flag of Mississippi in front of the statue on the public square in Oxford, MS “without a permit to protest”, not only on the same day as the above petitions were filed, but ironically during the same hour as the above referenced petitions were filed.
- 5) That on May 8th, 2017 Petitioner personally served response and counter-claim on Attorney Mona Pittman, realizing at that time that she worked out of the basement level of none other than Rhea Tannehill’s Office Building.
- 6) That on May 26, 2017, Crowder, through her Legal Counsel Mona Pittman, filed another *PETITION FOR CITATION OF CONTEMPT* which never stated a true and legitimate claim. Petitioner (Reardon) never had any contact with Crowder and in fact tendered \$2000 to

Crowder through her attorney (Pittman) despite not even being ordered to pay any certain amount of arrears in Child Support. Nonetheless, Petitioner (Reardon) gets attacked out of left field once again by Crowder and her attorney in an attempt to demonize him and create an undeserved and unjustifiable paper trail of documents.

- 7) That even more ironically, not only **during the same day but during the same hour** much like before, Petitioner is arrested on the Public Square in Oxford, MS. That particular arrest, false imprisonment, and deprivation of rights by the Petitioner (Reardon) currently sits before the MS Court Of Appeals referenced by cause number 2020-CP-01259-COA. As such, Petitioner would reference to the false and frivolous filings in this court by Crowder and allowed by this Defendant Judge as being what likely bears the brunt of responsibility for the events that have completely wrecked complete havoc in Petitioner's life and ripened his appeal to be brought before the MS Court of Appeals.
- 8) That the adverse party to this chancery matter (Crowder) has made multiple untrue, libelous, and defaming, claims which the defendant judge has refused to take into consideration in a vile attempt for Crowder to immorally take full rights of the minor child while concurrently removing the petitioner from the minor child's life. The serious (false) claims made by Crowder include:
 - a) In or around September of 2017, Crowder made an outlandish, outrageous assertion that Petitioner had sexually abused his 2-year-old minor child. Department of Child Protective Services Investigated the claim proving it to be unfounded and false.

- b) In November of 2018, Crowder through her own admitted acts of conspiracy, attempted to falsely initiate criminal proceedings against petitioner in claiming that petitioner had raped her. Olive Branch Police Department investigated these claims and through investigating the facts, stated claim, and through downloading petitioner's phone determined that Crowder had in deed initiated a false report of rape. As a result led to charges being filed and a warrant being issued by Olive Branch Police Department which Lafayette County Sheriffs Department was fully made aware of, however, refused to enforce for over 12-months' time which petitioner states was intentionally done with ill-intent in the furthered denial to petitioner of equal protections of the laws through being an accessory to the crimes committed by Crowder and directed at Petitioner (Reardon). Petitioner feels it is important to notate that Crowder has made claims to both her husband, Dustin Kester, playing a part in her filing this false report of rape, as well as it being a "Failed attempt by Rhea Tannehill".
- c) In January of 2020 while petitioner and his wife was at LeBonheur Childrens Hospital attending to their ailing newborn child, Crowder once again strikes in making yet again another outrageous false allegation that the minor child was struck by petitioner's wife. Child Protective Services once again were contacted in a completely immoral move yet again, this time interfering with ongoing care for a newborn child ailing from a rare illness at LeBoneur Childrens Hospital. Once again, the claim made by Crowder was proven to be unfounded and untrue. Nonetheless, Crowder carried out a 13-month lie asserting to both the Lafayette County Sheriff's Department and the Chancery Court of Lafayette County that Department of Child Protective Services advised her to cease all visitation with the minor child's father which included communication and even visual eye sight of the minor child. Petitioner states that the Defendant

Judge should have had an obligation to enforce the visitation schedule unless evidence of wrongdoing was actually produced, and should have never taken Crowder at her word alone given the distinct history she has had at making false and frivolous allegations. Nonetheless, she and her attorney were taken at their word by the defendant judge while Petitioner (Reardon) and the Minor Child continued to aggrieve more and more damages due to forced separation and intentional ill-brought legal proceedings meant to interfere with a pending appeal on the occurrences in 2017 which Petitioner states a solid paper trail established show stemmed from the malice hands of Crowder, her attorney (Pittman), The Lafayette County Sheriffs Department, and the Chancery Court of Lafayette County, to include this defendant Judge.

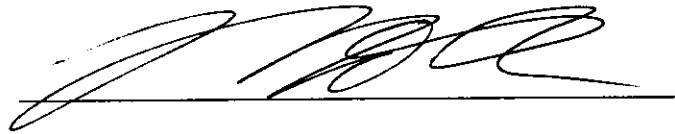
- 9) That Petitioner states the facts stated within and the repetitive forced separation of the minor child from him now takes the mold and meets the criteria for allegations of ***CHILD EXPLOITATION AND HUMAN TRAFFICKING*** among other serious violations, further utilizing the Chancery Court of Lafayette County as the venue, and the Defendant Chancellor as an accessory to the crimes committed whether it be by culpable negligence or in fact playing a knowledgeable role in the crimes steadily committed and directed at petitioner.
- 10) The Defendant Judge states that his granting the plaintiff her latest request is not a result of an open highly contested allegation of DUI and that it stems from a separate event, where the facts and information are also highly contestable involving significant procedural error and serious violations of the petitioner's fourth amendment rights. As such, the matter in reference was retired and closed out, now which the recent order from the Defendant Judge poses multiple

issues at hand regarding constitutional law, the legality, and the jurisdictional authority of this trial court among others.

- 11) That petitioner's ordered compliance with the aggrieved upon order would make the petitioner prove his innocence in order to continue his regular entitled scheduled visitation with his minor child.
- 12) On multiple occasions the defendant judge has ruled in ways that are counter to well established and settled law in adjudicating guilt until innocence is proven. Particularly when it comes to Petitioner in this cause, though over and over refusing to rule the same and allowing adverse party to continue her continued spree of false allegations and "fishing" for a reason to justify her contumacious actions of refusing to comply with the child visitation order. Petitioner has made this claim in multiple filed documents and motions brought before the Chancery Court of Lafayette County which demonstrate unequal treatment by the Defendant judge when it comes to the adverse party whom doubles as the minor child's natural mother.
- 13) That the seriousness of the allegations made combined with the manifest error in previously filed documents which have been raised yet not addressed by this Defendant Judge have in turn compounded a far worse issue at law currently at hand and as such, when combined with this petition for writ of mandamus **WOULD REQUIRE THAT THIS DEFENDANT JUDGE RECUSE HIMSELF**

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RESPECTFULLY SUBMITTED THIS 11TH DAY OF OCTOBER, 2021

A handwritten signature in black ink, appearing to read 'M. Reardon', is written over a horizontal line.

MATTHEW REARDON

PETITIONER

117 CR 401

OXFORD, MS 38655

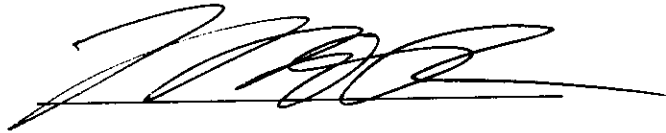
662-205-6711

matt@mattreardon.com

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the
aforesaid County and State, the within named, Matthew Oliver Reardon, who,
after being first duly sworn, states that the matters contained in the above and
foregoing Notice of Appeal and Petition for Writ of Mandamus are true and
correct as therein stated.

This the 11th day of October, 2021



Matthew Reardon

SWORN TO AND SUBSCRIBED BEFORE ME, this the 11th day of October 2021.



Notary Public

